

Amendment No. 1 to SB1210

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1210*

House Bill No. 1254

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 8, Part 3, is amended by adding the following new section:

(a) As used in this section:

(1) "Brady list" means a designation made, letter issued, or list compiled by a prosecuting agency containing the names and details of law enforcement officers who have sustained incidents of untruthfulness, criminal convictions, candor issues, or other issues that place the officer's credibility into question; and

(2) "Prosecuting agency" means the offices of the district attorney general and assistant district attorneys general for each judicial district, the office of a district attorney general pro tem, and the offices of the attorney for each county and municipality that is responsible for prosecuting criminal violations.

(b) A prosecuting agency that maintains a Brady list shall adopt a policy that must be sent to all law enforcement agencies in the district for comment before the policy is adopted. At a minimum, the policy must include the following:

(1) The criteria used by the prosecuting agency to place an officer's name on a Brady list;

(2) The officer's right to receive written notice and a summary of the reasoning of the prosecuting agency before the prosecuting agency places the officer's name on a Brady list, and the officer's right to provide input to the

prosecuting agency before the prosecuting agency makes a determination of whether the officer's name should be placed on a Brady list;

(3) The officer's right to make a request for reconsideration of the prosecuting agency's determination to include the officer's name on a Brady list and to submit supporting and corroborating documents and evidence in support of the officer's request for reconsideration; and

(4) The applicable time frame and procedures for notifying the officer of the prosecuting agency's final decision on an officer's request for reconsideration.

(c) As soon as practicable, before a prosecuting agency makes a determination to place a law enforcement officer's name on a Brady list, the prosecuting agency shall send a written notice by mail or email to the law enforcement officer's current or last known employment address. On receipt of the notice, the law enforcement officer's current or last known employer shall provide the written notice to the officer at the officer's last known address. The written notice must include, at a minimum, the following:

(1) A notice that the officer's name may be placed on a Brady list;

(2) A summary of the justifications for Brady list consideration;

(3) The officer's right to provide input to the prosecuting agency prior to the prosecuting agency's determination of whether the officer's name should be placed on a Brady list; and

(4) The prosecuting agency's procedural requirements for an officer to provide input to the prosecuting agency.

(d) If the prosecuting agency places an officer's name on a Brady list, then the prosecuting agency shall send a written notice by mail or email to the officer's current or last known employment address. Upon receipt of the notice, the officer's current or last

known employer shall provide the written notice to the officer at the officer's last known address. The written notice must include, at a minimum, the following:

(1) The officer's right to make a request to reconsider the allegations and placement on a Brady list;

(2) The prosecuting agency's procedural requirements for submitting a written request for reconsideration, including the method and time frame for submitting the request for reconsideration and any supporting and corroborating documents and evidence from any pertinent sources;

(3) A summary of the justifications for inclusion of the officer's name on a Brady list; and

(4) A statement that, if the officer intends to make a request to reconsider placement on a Brady list, then the officer must submit the written request for reconsideration to the prosecuting agency as soon as practicable after receiving the notice.

(e) If an officer submits a request for reconsideration pursuant to this section and the officer's request for reconsideration is approved by the prosecuting agency on its merits, then the officer's name must be removed from the Brady list. If the officer's request for reconsideration is denied by the prosecuting agency, then the officer's name must remain on the Brady list. If an officer does not submit a request for reconsideration or fails to comply with the requirements for submitting a request for reconsideration, then the officer's name must remain on the Brady list.

(f) This section does not limit the duty of a prosecuting agency to produce Brady disclosure information in all cases as required by the United States Constitution, the Tennessee Constitution, and the Tennessee rules of criminal procedure and rules of evidence, before, during, and after the initial placement of the law enforcement officer's name on a Brady list while the decision or a request for reconsideration is still under consideration.

(g) This section does not limit or restrict a prosecuting agency's ability to remove a law enforcement officer's name from a Brady list upon receipt of additional supporting and corroborating information or a change in factual circumstances at any time if the prosecuting agency determines that the law enforcement officer's name no longer requires placement on a Brady list.

(h) A Brady list or any other files, evidence, or records used to make a Brady list determination that are in the possession of a prosecuting agency are confidential and not subject to a public records request under the Tennessee Public Records Act, compiled in title 10, chapter 7. This subsection (h) does not prohibit the release of these records to the officer or the officer's legal counsel upon the request of the officer or the officer's legal counsel, or as otherwise provided by law or court order. This subsection (h) does not prohibit the release of these records to another law enforcement agency or prosecuting agency in another district.

(i) This section does not create a private cause of action against a prosecuting agency, an employee of a prosecuting agency, or the employer of the law enforcement officer.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.